

Federation Extraction Canonicalisation (The Order)

ORDER

SC

[2026] VJS-SC 1 · 9 June 2026

BINDING

· assent: standing bounded assent · subject: constitutional.federation-extraction-canonicalisation

9-0 Supreme Court ruling on federation test, V1 incorporation, canonicalisation governance, and constitutional directives.

Supreme Court, full court of nine, 9-0 on disposition (reasoned division on the mechanism of Q3). Within the entrenched single apex (s.15, not re-opened; REALM-SC 6, REALM-PC 15 carried forward as persuasive archive): (Q3) a coordinating or super-repo root may federate peers under one canonical lawpack and one continued apex but may never be sovereign; the lawful-coordination test is a kernel-checkable bright-line (no apex; no binding/gating a peer's law without adoption, s.4; no canonical override without s.3; no foreclosing amend/pin/fork/exit, s.6/s.7, REALM-PC 17) plus a court-applied practical-subjection standard that is NOT a kernel gate (s.11); default subscription (s.2) is lawful because genuinely revocable. (Q4) Holes take one mechanism each: the Privy Council is the transition court and hears the Gazette reference; the V1 Court acts only to perfect already-heard V1 matters (publication-only, no force, s.16) and to find validity on a genuinely contested V1 source; the Court of Appeal persists (no hole, D4); citation-minting and the directed regulations go to the lawmaking route. (Q5) Valid general V1 law crosses only by the central lawmaking route as an express, entry-by-entry, rank-matched, fail-closed incorporation recorded in the migration ledger (Charter s.11); repo-specific law uses the [2026] VJS-PC 1 continuity election; no incorporation may weaken the protective floor. (Q6) The "V2" ordinal is spent on commencement; the canon is unqualified and "V1" survives only as the estate label; de-naming is prospective and strictly non-disturbing (assented digest 8e1d3f51, lawpack lock 4d2639cc, citations and IDs immutable); the rename is governed, never a mass edit. The Court rules the principles and directs the Standing Committee to codify them (REALM-SC 8 method).

DIRECTIVE	ACTOR	MUST
D1	standing_committee	draft the five instrument legislative programme as void first drafts for assent
D2	privy_council	sit as the transition court classifying pending v1 matters and hear the gazette reference
D3	agent	incorporate general v1 law only by express entry by entry rank matched fail closed record in the migration ledger

D4	agent	treat canonicalisation as prospective and non disturbing with a governed rename
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FORBIDDEN

- a federation root asserting an apex or binding a peer without adoption or foreclosing exit
- delegating the practical subjection question to the kernel as a gate
- incorporating v1 law by implication or in bulk or below rank or weakening the protective floor
- retro editing any assented text digest citation or record id to drop v2
- an unstaged mass edit that breaks the lawpack lock or un scopes path scoped invariants

SC of nine, 9-0. A federation root coordinates lawfully only while infrastructural, adoption-based, canonical-respecting and exit-preserving (bright-line, kernel-checked); practical subjection is a court standard, not a kernel gate; default subscription is lawful because revocable. The PC is the transition court; the V1 Court acts only to perfect already-heard matters and find contested validity; the Court of Appeal persists. General V1 law crosses only by an express, entry-by-entry, rank-matched, fail-closed incorporation recorded in the migration ledger; repo-specific law uses the VJS-PC 1 continuity election; the protective floor may not be weakened. The "V2" ordinal is spent; the canon is unqualified, "V1" the estate label; de-naming is prospective, non-disturbing, governed - never a mass edit (the lawpack lock and path-scoped invariants forbid it). The Committee is directed to codify the five instruments; all are void first drafts until assented (s.14, s.23). Single apex (s.15) entrenched and not re-opened.